

24STCV08288 24STCV08288

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Case Number: 24STCV08288 Hearing Date: September 14, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

14, 2026 TRIAL DATE: August 2, 2027

CASE: Mike Tehrani, et al. v. Mehrdad Adjari

CASE NO.: 24STCV08288

PURE

ECO, INC.'S DEMURRER TO SECOND AMENDED COMPLAINT

MOVING

PARTY: Defendant Pure Eco, Inc.

RESPONDING

PARTY: Plaintiffs Mike Tehrani and Eskin

Builders Corp.

I. BACKGROUND

This case concerns the property located at 12428 Laurel

Terrace Drive, Studio City, California 91604 (the Property). Defendant Mehrdad Adjari (Adjari) is the owner of the Property. In 2021, Adjari and plaintiffs

Mike Tehrani and Eskin Builders, Corp. (Plaintiffs) entered into a written contract wherein Plaintiff agreed to provide labor, services, equipment, or

materials for a construction project on the Property. Plaintiffs completed the work. Adjari failed to pay Plaintiffs for the amount due.

On April

16, 2026, Adjari filed the operative First Amended Cross-Complaint against Plaintiffs for breach of contract and negligence.

On February 20, 2026, Plaintiffs filed the operative Second Amended Complaint ("SAC") alleging twenty-one causes of action. For the first time, Plaintiffs name Pure Eco, Inc. ("Pure Eco") in the SAC as a defendant.

Pure Eco performed construction work on a portion of the Property.

On June 17,

2026, Pure Eco filed a demurrer to the 14th-20th causes of action in the SAC.

On July 15,

2026, Plaintiffs filed an opposition.

On July 21,

2026, Pure Eco filed a reply.

The

demurrer was heard on July 28, 2026.

After oral argument, the court adopted the tentative ruling finding that

Pure Eco did not meet and confer prior to filing this demurrer. The court continued the hearing and directed the parties to meet and confer. The

court also directed the parties to file a supplemental opposition or

supplemental reply pursuant to Code of Civil Procedure section 1005. Alternatively, Pure Eco was to file a status report no later than 5 court days before the hearing indicating whether the court should rule on the demurrer based on the current briefing.

On August

24, 2026, counsel for Pure Eco filed a declaration explaining that, after meeting and conferring, Plaintiffs have agreed to dismiss the 18th and 19th causes of action.

The parties were unable to resolve informally the demurrers to the remaining causes of action. The court proceeds to consider those demurrers.

II. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

III. DISCUSSION

Pure Eco demurs to the fourteenth cause of action for implied indemnity, fifteenth cause of action for equitable indemnity, sixteenth cause of action for contribution, seventeenth cause of action for comparative negligence, and twentieth cause of action for declaratory relief. The court addresses these causes of action in turn.

A. Implied Indemnity

Pure Eco argues the fourteenth cause of action or implied indemnity[1] fails because the SAC improperly groups “multiple subcontractors without specific facts identifying Defendant’s work, acts, omissions, or causal role in any alleged loss.” (Dem., p. 10:20-21.) The court disagrees. The SAC alleges “If Plaintiffs are held liable on any Cross-Complaints, such liability will be based not on any act of wrongdoing on the part of the Plaintiffs, but solely on the acts or omissions of those Defendants named herein. In particular, Plaintiffs are informed and believe and thereon allege that the damages, if any, sustained by Defendant MEHRDAD AJDARI or any party that may file a Cross-Complaint against Plaintiffs were primarily, actively, or ultimately caused by the negligent or wrongful acts or omissions of those Defendants named herein, who failed to perform their respective duties related to the Property, whereas any liability of the Plaintiffs is secondary, passive, or derivative in nature only.” (SAC, ¶ 125.) The court finds this is sufficient detail to apprise Pure Eco of Plaintiffs’ claims. Any perceived deficiencies may be addressed by discovery.[2]

Accordingly, the demurrer to the fourteenth cause of action is OVERRULED.

B. Equitable Indemnity

Pure Eco argues the fifteenth cause of action for equitable indemnity fails because it does not plead facts specific to Pure Eco.

The elements of a cause of action for equitable indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is equitably responsible. (C.W. Howe Partners Inc. v. Mooradian (2019) 43 Cal.App.5th 688, 700.)

The court disagrees. As discussed above, the SAC alleges that “the damages, if any, sustained by Defendant MEHRDAD AJDARI or any party that may file a Cross-Complaint against Plaintiffs were primarily, actively, or ultimately caused by the negligent or wrongful acts or omissions of those Defendants named herein, who failed to perform their respective duties related to the Property....” (SAC, ¶ 125.) The court found this allegation was sufficient to support the fourteenth cause of action. It is incorporated into the fifteenth cause of action. (SAC, ¶ 129.) The allegation is sufficient to apprise Pure Eco of the nature of Plaintiffs’ claim. Any perceived deficiencies may be addressed by discovery.

C. Contribution

The sixteenth cause of action for contribution is premature because it has not accrued. Code of Civil Procedure section 875 provides for contribution where a money judgment has been rendered jointly against two or more defendants in a tort action. (Code Civ. Proc., § 875.) “Under the California statute, the right of contribution among joint tortfeasors is contingent upon the entry of a judgment against them, and the right may be enforced only after one tortfeasor, by payment, has discharged the joint judgment or has paid more than his pro rata share thereof” (E. B. Wills Co. v. Superior Court (1976) 56 Cal.App.3d 650, 653.)

Here, Plaintiffs seek contribution from Pure Eco “[i]n the

event Defendant MEHRDAD ADJARI or any other party recovers damages against Plaintiffs in this action....” (SAC, ¶ 133.) As the allegations make clear, there is neither a judgment nor any payment made. The cause of action is not ripe and subject to demurrer.

Accordingly, the demurrer to the sixteenth cause of action is SUSTAINED. Leave to amend is DENIED WITHOUT PREJUDICE.

D. Comparative Negligence

Comparative

negligence is not a cause of action. Rather, it is a doctrine “under which a jury properly may consider and evaluate the relative responsibility of various parties for an injury ...in order to arrive at an ‘equitable apportionment or allocation of loss.” (Agustin v. Golden Empire Transit Dist. (2025) 116 Cal.App.5th 426, 450 (cleaned up); see also Yale v. Bowne (2017) 9 Cal.App.5th 649, 659 [explaining that the system of comparative fault is a defense which asks a different question than negligence liability].) For this reason, this cause of action fails.

Accordingly, the demurrer to the seventeenth cause of action is SUSTAINED. Leave to amend is DENIED.

E. Declaratory Relief

“To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

A cause of action for declaratory relief should not be used as a duplicate cause of action for the determination of identical issues raised in another cause of action. (General of America Insurance Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.) Further, “there is no basis for declaratory relief where only past wrongs are involved.” (Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 366, quotation marks omitted.) Declaratory relief is “to be used in the interests of

preventive justice, to declare rights rather than execute them.” (Cordoba Corp. v. City of Industry (2023) 87 Cal.App.5th 145, 157, quoting Babb v. Superior Court (1971) 3 Cal.3d 841, 848.)

Here, the SAC alleges that “[a]n actual controversy exists between the parties concerning their respective rights, duties and obligations in that Plaintiffs contend that they are entitled to the defense and/or indemnity, contractually or equitably, totally or partially, from Defendants, and each of them, including any costs, fees, expenses or judgments, paid or incurred by these Plaintiffs on Defendants or any other party to this litigation. In addition, Plaintiffs contend that the Defendants were negligent and are subject to contribution due to the performance of the duties they undertook when they entered into to perform the services, contracts and subcontracts described in the Cross-Complaint and this Complaint. Defendants, and each of them, deny these contentions and contend the opposite. ” (SAC, ¶ 152.) These allegations are duplicative of Plaintiffs’ other causes of action and/or otherwise describe past wrongs. Plaintiffs do not plead a viable cause of action for declaratory relief.

Accordingly,
the demurrer to the twentieth cause of action is SUSTAINED. Leave to amend is DENIED.

IV. CONCLUSION

Pure Eco’s demurrers are Overruled In Part, and Sustained In Part, as indicated herein.

Defendant

Pure Eco, Inc. is ordered to serve and file its Answer to the SAC within 10 days of this order.

Defendant to give notice, unless waived.

Dated: September 14,
2026

Brock T.
Hammond

Judge of

the Superior Court

[1] “The elements of two critical prerequisites are generally necessary for the invocation of noncontractual implied indemnity in California: (1) The damages which the claimant seeks to shift are imposed upon him as a result of some legal obligation to the injured party; and (2) it must appear that the claimant Did not actively nor affirmatively participate in the wrong.”
(Taggart v. State of California (1975) 45 Cal.App.3d 768, 770–771 (cleaned up).)

[2] The court declines to consider any arguments raised by Pure Eco for the first time in its reply.